

See also: The US Constitution and Bill of Rights 110–117 ■ The Universal Declaration of Human Rights 222–229
 ■ The WIPO Copyright Treaty 286–287 ■ *Google Spain v. AEPD and Mario Costeja González* 308–309

and, in consequence, the world's near-absolute dependence on it, this is a matter of vital importance.

ISPs and content providers

The internet is a digital interaction between content providers and consumers, allowing more or less limitless transfer (traffic) of digital data between content providers and consumers—everything from messages, emails, and online stores to video-streaming and social media services and search engines. The physical link between them is a vast, endlessly complex global network of cables and transmission towers provided by ISPs. As well as building this costly infrastructure, each ISP designs a financial model for charging all the suppliers and consumers that use their network.

Any internet user (provider or consumer) must pay an ISP for using its network. If the ISP adhered to net neutrality, the user could be confident that their access to the internet would be entirely even-handed. The ISP

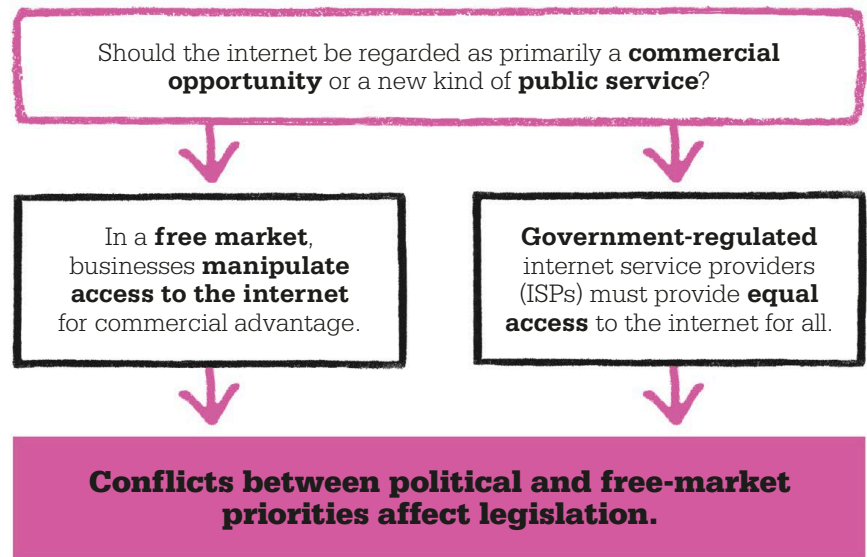
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We nurture and protect our information networks because they stand at the core of our economies, our democracies, and our cultural and personal lives.

Tim Berners-Lee

Inventor of the World Wide Web, 2006

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would not give priority or lesser treatment to any content. Even the largest content providers with countless users, such as Google, YouTube, Facebook, and Twitter, would be treated in exactly the same way as the humblest, such as the website of a local sole trader or community.

In an unregulated market, ISPs could choose, for their commercial advantage, to block content or to “throttle” it by deliberately slowing the transmission speed so that it downloads slowly or has to be of low quality. They could discriminate by pricing—for example, charging more to content suppliers for artificially speeded “fast lanes” (paid priority) or zero-rating access (limiting the content available to free users), which could leave other content suppliers at a disadvantage.

In 1996, when the internet was in its infancy, the first attempt to regulate ISPs in the US came with the Telecommunications Act. It classified ISPs that had existing

telephone networks (cable-modem or dial-up) as telecommunications services, or “common carriers” under the 1934 Telecommunications Act, to be regulated as public utilities. Broadband ISPs were classed as “information services” and exempt from regulation. The distinction was critical, as it governed whether ISPs were legally bound to provide equal access to content for all.

FCC policy

The Federal Communications Commission (FCC) is the regulatory body for all communication systems in the US, but over the years, it has changed its policy several times. In 2002, the FCC reclassified even the cable-modem ISPs as “information services,” not “common carriers.” Its 2008 attempt to regulate ISPs was foiled (see box, p.312). Convinced that the advantages of net neutrality are overwhelming, and with strong public support, the FCC issued an Open Internet Order »